



Osmoflo – Guidera O'Connor

MN-35031

Phase 1 Determination

Acquisition may be put into effect

2 September 2026

1. Determination and statement of reasons

Notified acquisition	Osmoflo Water Management Pty Ltd (Osmoflo)'s proposed acquisition of 100% of the shares in Guidera O'Connor Pty Ltd (Guidera O'Connor) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Osmoflo, is the principal operating entity within the "Osmoflo Group" in Australia. The Osmoflo Group is a member of the global Kanadevia Group, specialising in waste-to-energy plants, water treatment, renewable energy, and industrial machinery. The Kanadevia Group's ultimate international parent company (Kanadevia Corporation (KVC)) is a Japan-based industrial and engineering company listed on the Tokyo Stock Exchange. The Osmoflo Group serves as KVC's primary offshore water treatment business. Osmoflo is headquartered in South Australia and specialises in the design, manufacture and supply of advanced reverse osmosis desalination plants for installation at client sites, as well as the supply of water treatment equipment, chemicals and consumables. Another significant part of Osmoflo's business is the ongoing operation and maintenance of water treatment infrastructure or equipment, usually supplied by Osmoflo. Osmoflo deploys its equipment nationwide and offshore and has service offices located nationwide, which provide customers with operation and maintenance support. The target, Guidera O'Connor, is a site-based Australian design & construction contractor that designs and constructs integrated water and wastewater systems. Guidera O'Connor delivers new, refurbished or augmented design and construction solutions onsite in greenfield and brownfield environments, ranging from singular units within established facilities to full turnkey outcomes.
Overlap and relationship between the Parties	Osmoflo and Guidera O'Connor both supply services related to water and wastewater treatment projects in Australia.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information from third parties and publicly available information.

	The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • There is minimal horizontal overlap between Osmoflo and Guidera O'Connor in the supply of water and wastewater treatment projects in Australia. • The merged entity would continue to face competition from multiple alternative suppliers of water and wastewater treatment projects in Australia post-Acquisition. • The Acquisition is unlikely to give rise to conglomerate effects, as the merged entity would be unlikely to have the ability and incentive to foreclose competitors in the supply of water and wastewater treatment projects.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**